

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 25-09
QVC, INC. AND CORNERSTONE BRANDS, INC.
v.
OCEAN NETWORK EXPRESS PTE. LTD.

JOINT STATUS REPORT AND THIRD MOTION TO EXTEND DEADLINES

COME NOW the parties, Complainants, QVC, INC. AND CORNERSTONE BRANDS, INC. (“Complainants” or “QVC”), and Respondent Ocean Network Express Pte. Ltd. (“Respondent” or “ONE”), by their respective undersigned counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby submit this Joint Report and Third Motion to Extend Deadlines (“Motion”) and respectfully request an extension of the deadlines set forth in the Presiding Officer’s May 18, 2026 Scheduling Order a third time to accommodate the current progress of the Parties’ discovery, which is progressing as quickly as possible.

I. The Current Schedule

On May 18, 2026, the Presiding Officer entered a Scheduling Order with the following deadlines relevant to this Motion:

EVENT	PROPOSED DEADLINE
Substantial completion of productions of documents and ESI in response to initial RFPs	05/29/2026
Joint Status Report 2 regarding discovery	06/15/2026
Complete depositions of fact witnesses	07/14/2026
Last day to serve interrogatories, requests for admission, and RFPs	07/14/2026
Joint Status Report 3 regarding discovery	07/27/2026
Disclosure of initial expert reports, if any	08/14/2026
Disclosure of rebuttal expert reports, if any	08/28/2026
Last day to respond to interrogatories, requests for admission, and RFPs	09/03/2026
Close of fact discovery	09/03/2026
Complete expert depositions and all discovery	09/18/2026
Complainants' initial brief, proposed findings of fact, and appendix	10/20/2026
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	11/19/2026
Complainants' reply and responses to proposed findings of fact	12/04/2026

The Parties submit the below as good cause for an additional extension of each of the respective dates at issue. The Parties have worked together to make significant steps in the discovery process in the present matter.

II. Progress to date

Complainants have substantially completed their production of documents. Complainants made an initial production of 13,367 documents to Respondent on March 6, 2026, and made a second production of 4,135 documents on March 16, 2026. Complainants plan to make a supplemental production of under 1,500 documents to Respondent this week, and are in the process of preparing a privilege log.

Respondent has also worked diligently with its data vendor to ensure that documents are ready for collection, review, and production to Complainants. Respondent has continued to meet with its vendor on a weekly basis to discuss review data for production. As previously reported,

Respondent completed an initial search to identify over 850,000 potentially responsive documents collected from selected custodians and electronic files. On March 26, 2026, Respondent produced 1,613 documents to Complainants. A second set of 646 documents was produced to Complainants on May 11, 2026, and a third set of 3,658 documents on June 5, 2026. Respondent is currently finalizing quality control on two additional productions of documents totaling roughly 12,000 documents. One production is scheduled to be released for production tomorrow, June 16, 2026, and a second production by Thursday June 18, 2026. At that point in time Respondent expects its production of documents to be substantially completed.

However, Respondent is still expecting to continue to produce smaller sets of documents requiring redactions on a rolling basis. These types of documents are not specific to Complainants. The total amount of documents potentially requiring redaction prior to production is larger than originally expected at 56,000 documents.

Once those productions are completed, the Parties will still need the time to review the voluminous batches of document productions and prepare to take potentially numerous depositions. Respondent notes that, at this point in time, Complainant has identified around 10 potential facts witness in its initial disclosure and response to discovery demands. Respondent has identified 11 potential ONE employees that may be called as fact witnesses.

The Parties are also mindful that the recently issued Initial Decision in *20230930-DK-Butterfly-1, Inc. F/K/A Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Dkt. No. 23-02, 2026 WL 1285696 (ALJ April 24, 2026) addresses issues similar to some of those raised in this proceeding. The Parties note that they will continue to work to narrow the issues before them, including through the use of experts. The engaged

experts' involvement will become more prominent after the review of the Parties' productions and through the depositions of fact witnesses.

Even taking into account the Parties' efforts to work together in narrowing the issues, this request is based on the pace of the Parties' productions and reviews even when using all resources and all good faith efforts. To address it in any workable manner, using all reasonable efforts, the Parties respectfully submit that the request made herein be granted.

III. Good Cause Exists to Extend the Current Deadlines

A. Large Discovery Volumes Contribute to the Need for an Extended Timeframe

The facts concerning the status of discovery can be summarized as follows: the Parties have worked diligently and cooperatively in order to meet the Scheduling Order's May 18, 2026 deadline for substantial completion of document (including ESI) production, have made rolling productions of documents to one another, and have met and conferred, but the volume of the documentation prevented the meeting of that deadline.

From the documents collected, both Parties must manually review them for the information they offer, organize them, address any privilege issues and finally marshal a working knowledge of all to allow further steps, such as depositions, to be done in a meaningful manner. That process necessarily requires substantial time and care. This review will cover hundreds of thousands of documents to be reviewed by the Parties for production.

The Parties have continuously worked with their respective e-discovery partners to streamline the process as much as possible and continue to do so, but there is no question the entire process has been time and effort intensive.

As a part of the ongoing review and rolling productions process, the Parties will need to work to review the substantial amount of documents that are pulled in by the Parties' ESI Protocol terms. The Parties submit that the substantial volume of documents, the need for thorough review,

and the pace that the documents can be intelligently reviewed is a good cause reason for an extension of time to ensure that the Parties can complete their discovery obligations effectively and each Party is not prejudiced by the fact that a very large amount of documents have been collected in accord with discovery demands properly put forth.

B. The Large Discovery Volumes Will Impact Other Case Milestones

The Parties remain respectful of the deadlines set forth in the May 18, 2026 Scheduling Order, and to date have worked together diligently and collaboratively to satisfy its terms. However, the complexity and the expected size of the responsive documentation has made it clear to the Parties that even with all their best efforts, they will not be able to collectively complete production and review of document discovery within the present deadlines. Consequently, the Parties would not be able to adequately prepare for and take depositions based upon a full factual record and further would not be able to present their respective claims and defenses adequately in their respective briefs or in any eventual trial in this action.

The Parties have and continue to work to limit the need for any discovery-related disputes to be brought before the Presiding Officer. To facilitate this goal while providing the Presiding Officer with timely updates, the Parties propose providing additional Joint Status Reports to the Presiding Officer by July 15, 2026 and August 31, 2026.

The Parties are aware of the prior Order of this tribunal and the Chief Administrative Law Judge Erin M. Wirth's Order in *Way Interglobal Network LLC v. Shenzheng SCM Limited*, FMC Dkt. No. 22-28, Dk. No. 18, denying a request for 120 additional days and instead granting a 45-day extension. In making this Motion, the Parties have limited their request to the most reasonable amount of time in which they believe they can feasibly conduct discovery in this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit

depositions, and expeditiously resolve discovery disputes and produce documents promptly to the extent possible.

Although the Parties will continue to endeavor to adhere to the ordered schedule, the sheer volume of documents may make for an impossible situation as is the case now. Other reasons may include issues arising from the collection and production of documents located abroad or in the custody of non-parties, the need for significant Party depositions, or the need for testimony from non-parties or individuals located abroad (including employees of Respondent). The Parties will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available. However, in the interest of full transparency, the Parties wish to note such possible issues to the Presiding Officer now. Indeed, as is a matter of public record, in an action before the Commission by the complainant in that case against another ocean carrier in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where the complainant has raised similar legal claims as in the present action, the parties there took over 30 total depositions.

Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

As shown above, a higher volume of documents by many magnitudes is involved in this matter than the 20,000 pages cited by the parties in *One Banana North America Corp. v Hapag-Lloyd AG et al.*, FMC Dkt. No. 22-03, in which the Presiding Officer granted an approximate 75-day extension from the originally ordered production and deposition deadlines. Instead, this case is much more similar to that in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited*

and *OOCL (Europe) Limited*, Docket No. 23-02, where, as mentioned, over 30 depositions were taken. Given the significant number of custodians in the present case, it is possible that the number of depositions conducted in this case will approximate those which were taken in the *BBBY v. OOCL* proceeding. If so, both Parties are intent on avoiding any wasteful actions and will work to streamline all such developments to their fullest ability.

IV. Conclusion

Given that the Parties are still working diligently to review and produce documents, the Parties respectfully submit that an extension of the deadlines in the Presiding Officer's May 18, 2026 Scheduling Order is necessary to allow the Parties a fair opportunity to review and conclude their respective production of documents, review such productions from the opposing party or third parties, depose each other's respective fact and expert witnesses, and assess any additional discovery. The Parties will endeavor to avoid seeking additional extensions of time and, to the extent motions are needed, will seek to raise them as soon as the need appears and, where possible, file them jointly.

The Parties therefore jointly request the following amended Scheduling Order for substantial completion of document (including ESI) production:

EVENT	PROPOSED DEADLINE
Substantial completion of productions of documents and ESI in response to initial RFPs - except for documents requiring redactions	06/30/26
Joint Status Report 3 regarding discovery	07/15/26
Complete depositions of fact witnesses	08/10/26
Last day to serve interrogatories, requests for admission, and RFPs	08/10/26
Joint Status Report 4 regarding discovery	08/31/26
Disclosure of initial expert reports, if any	09/22/26
Disclosure of rebuttal expert reports, if any	10/07/26
Last day to respond to interrogatories, requests for admission, and RFPs	10/14/26

Close of fact discovery	10/14/26
Complete expert depositions and all discovery	10/28/26
Complainants' initial brief, proposed findings of fact, and appendix	11/30/26
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	12/30/26
Complainants' reply and responses to proposed findings of fact	01/13/27

Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainants and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, the Parties jointly pray that their Joint Motion to Extend Deadlines be granted.

Dated: June 15, 2026

Respectfully submitted,

[EXECUTED ON THE FOLLOWING PAGE]

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